

CHICKASAW TRIBAL LEGISLATURE

Permanent Resolution Number 33-001

**Amendments to Title 10, Chapter 1 of the Chickasaw Nation Code
(Finance and Taxation General Provisions)**

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, these amendments update specific provisions of Title 10 of the Chickasaw Code dealing with certain funds to allow more flexibility in the administration of Chickasaw Nation funds and for the purpose of achieving greater returns on investments while balancing reasonable risks in investment.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby adopts the following amendments to Title 10, Chapter 1, Sections 10-101.4, 10-101.7, 10-101.10 and 10-101.11 through 10-101.19 of the Chickasaw Nation Code, all other sections and parts of sections remain the same (additions are shown in red, deletions are stricken through):

"SECTION 10-101.4 DEFINITIONS.

~~8. "surplus funds" shall mean those funds which remain after making provisions for all liabilities of every kind, including estimated needs for operations;~~

89. "Tribal Budget" shall mean that budget containing only trust funds devised by the governor in accordance with the requirements of the Constitution;

910. "Consolidated Governmental Budget" shall mean that budget containing the budgeted annual expenditures from the tribal general fund, enterprise fund and trust funds held in the name of the Chickasaw Nation, as devised by the governor;

1011. "Trust Funds" shall mean those funds held by the United States of America for and in the name of the Chickasaw Nation and which are administered by the United States of America and any of its agencies for the benefit of the Chickasaw Nation;

~~11 "Reserve" shall mean any funds which are set aside, the purposes or the use of which are not restricted to specific other uses. "Funds" shall mean available money set aside for a particular purpose.~~

12. "Imprest Funds" shall mean those Funds, either in cash or in a bank account, established to manage small day to day or incidental expenses, the balance of which being replenished periodically upon substantiation of the distributions made.

13. "Change Fund" shall mean an amount of cash held by a department or business and used to give change to customers when they are paying for goods or services.

14. "Deposited Funds" are those Funds deposited in a financial institution that is insured by the Federal Deposit Insurance Corporation or a like federal insurance program including checking accounts, savings accounts, time deposits (certificates of deposit) and money market savings accounts.

15. "Invested Funds" are those Funds invested to allow for maximized earnings within acceptable risk limits.

16. "Contractual or Fiduciary Funds" shall include grants and other federal funding, the Chickasaw Nation self-insurance fund and other accounts with funds from assets that the Chickasaw Nation holds as a trustee and that it cannot use to fund its own programs.

SECTION 10-101.7

SECURED DEPOSITS REQUIRED.

A. No Funds under the control of the Chickasaw Nation shall be deposited in any financial institution unless said institution is insured by either the Federal Deposit Insurance Corporation or a like federal insurance program. ~~the Federal Savings and Loan Insurance Corporation.~~

C. In the event that ~~invested~~ Deposited Funds in a single institution amount to more than the amount insured by the FDIC; ~~and said funds shall be~~ **are** collateralized; ~~provided that the financial institution where those funds are invested shall secure and pledge to the Chickasaw Nation joint custody receipts for the full amount of said funds.~~

SECTION 10-101.10

~~SURPLUS FUNDS INVESTMENT~~ INVESTED FUNDS.

~~Surplus~~ Funds from tribal operations may be invested by the Governor or his delegate in accordance with applicable sections of this Title. Tribal funds invested pursuant to this Section shall be for a period deemed appropriate by the Governor, insofar as such time does not affect the cash needs of a program, a department or a business. **Invested Funds are exempt from the requirements of Section 10-101.7.**

SECTION 10-101.11

CONTRACTUAL AND FIDUCIARY FUNDS.

Contractual and Fiduciary Funds shall be deposited, managed and invested in full consideration of the purpose, terms and distributional requirements of the fund or award and in accordance with federal and tribal laws existing at the time of creation or award.

SECTION 10-~~101.11~~ 101.12 **RECOGNIZED ACCOUNTING STANDARDS.**

SECTION 10-~~101.12~~ 101.13 **MONTHLY FINANCIAL STATEMENTS.**

SECTION 10-~~101.13~~ 101.14 RECORDS RETENTION PROGRAM.

SECTION 10-~~101.14~~ 101.15 VERIFIED CLAIMS.

SECTION 10-~~101.15~~ 101.16 CLAIM PROCESSING POLICIES.

SECTION 10-~~101.16~~ 101.17 IMPREST FUNDS.

SECTION 10-~~101.17~~ 101.18 CHANGE FUND.

SECTION 10-~~101.18~~ 101.19 AUDITS PERFORMED BY CPA.”

Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on December 18, 2015, by a vote of 12 ayes, 0 nays, and 0 abstentions.

Connie Barker
Chairperson
Chickasaw Tribal Legislature

Nancy Elliott
Secretary
Chickasaw Tribal Legislature

Concur: Bill Anoatubby Date: DEC 18 2015
Bill Anoatubby, Governor
The Chickasaw Nation

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Explanation: This Resolution updates specific provisions of the Finance and Taxation Code dealing with deposited funds and invested funds and clarifies that while deposited funds require FDIC insurance and possible collateralization, invested funds do not. Several definitions are added and a new code section is added for "Contractual and Fiduciary Funds," thereby changing the section numbering after Section 10-101.11. A blackline copy as amended is attached hereto.

Presented by: Finance Committee